

Andhra Pradesh Municipal Councils/Nagar Panchayats (Direct Election of Chairperson) Rules, 1986

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State of Andhra Pradesh - Act

Andhra Pradesh Municipal Councils/Nagar Panchayats (Direct Election of Chairperson) Rules, 1986

ANDHRA PRADESH

India

Andhra Pradesh Municipal Councils/Nagar Panchayats (Direct Election of Chairperson) Rules, 1986

Rule

ANDHRA-PRADESH-MUNICIPAL-COUNCILS-NAGAR-PANCHAYATS-DIRECT-ELECTION-OF-CHAIRPERSON-RULES-1986 of 1986

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Andhra Pradesh Municipal Councils/Nagar Panchayats (Direct Election of Chairperson) Rules, 1986

In exercise of the powers, conferred by clause (a) of sub-section (1) of Section 23 read with Section 326 of the Andhra Pradesh Municipalities Act, 1965 (Act No.6 of 1965), the Governor of Andhra Pradesh hereby makes the following rules

1.

These rules may be called the Andhra Pradesh Municipal Councils/Nagar Panchayats (Direct Election of Chairperson) Rules, 1986.

2.

(1)

These rules shall apply to all the Municipal Councils and Nagar Panchayats in the State of Andhra Pradesh.

(2)

The Chairperson under Section 23 of the Andhra Pradesh Municipalities Act, 1965, shall be elected by the persons whose names appear in the electoral roll for the Municipality/Nagar Panchayat from among themselves.

3.

In these rules, unless there is anything repugnant in the subject or context,--

(a)

"Act" means the Andhra Pradesh Municipalities Act, 1965;

(b)

"Ballot Box" includes any box, bag or other receptacle used for the insertion of ballot paper by voters as directed by the Election Authority;

(c)

"Counterfoil" means the counterfoil attached to a ballot paper, printed under the provision of these rules;

(d)

"Election Authority" means the authority defined in clause (12) of Section 2 of the Act;

(e)

"Election Officer" means the Commissioner or any person or Officer authorised or appointed by the Election Authority to do any act or perform any function in connection with the conduct of election of Chairperson under these rules.

Explanation. - The election authority may appoint one or more persons who shall be Officer or Officers of the local authority or the Government as Additional Election Officer or Assistant Election Officer or Officers to assist the Election Officer in the performance of his functions and every *[Additional Election Officer or] Assistant Election Officer so appointed shall, subject to the control of the Election Officer, be competent to perform all or any of the functions of the Election Officer and the expression "Election Officer" shall be deemed to include such Assistant Election Officer also:

Provided that the Assistant Election Officer shall not perform any of the functions which relate to the scrutiny of nominations, unless the Electoral Officer is unavoidably prevented from performing the said function;

(f)

"Elector" in relation to any election to any Municipal Council/Nagar Panchayat means a person whose name appears in the electoral roll for the Municipality/Nagar Panchayat as it remains in force, except a person who is declared to be a man of unsound mind and stands so declared by a competent court;

(g)

"Electoral roll" means the electoral roll prepared and published under Section 11 of the Act;

(h)

"Form" means the form appended to these rules and includes the translation of the matter in Telugu, or any other language or languages specified in the Eighth Schedule to the Constitution;

(i)

"Government" means the State Government of Andhra Pradesh;

(j)

"Marked copy of the electoral roll" means the copy of the electoral roll set apart for the purpose of marking the names of electors to whom ballot papers are issued at an election;

(k)

"Polling Station" in relation to an election of a Member or election of Municipal Chairperson means the place fixed under Rule 31 for taking the poll at the election;

(l)

"Presiding Officer" includes any Polling Officer performing any of the functions of a Presiding Officer under sub-rules (2) and (3) of Rule 30;

(m)

"Public Holiday" means any day declared as such by the Government;

(mm)

"State Election Commission" means State Election Commission constituted under Article 243-K of the Constitution of India.

(n)

For the purpose of these rules, a person who is unable to write his/her name shall, unless otherwise expressly provided in these rules, be deemed to have signed an instrument or other paper, if--

(a)

he/she has placed a mark on such instrument or other paper in the presence of the Election Officer or the Presiding Officer or such other Officer as specified in these rules;

(b)

such Officer on being satisfied as to his/her identity has attested the mark as being the mark of that person; and

(c)

"Voters on election duty" means any polling agent, any Polling Officer, Presiding Officer or other public servant who is an elector in the Ward and is by reason of his/her being on election duty unable to vote at the polling station where he/she is entitled to vote.

3A.

Administrative machinery for the conduct of Elections.

- (i) (a) The conduct of Elections to all Municipalities/Nagar Panchayats in the State shall be under the superintendence, direction and control of the State Election Commission.

(b)

The Election Authority as may be appointed by the State Election Commission shall exercise such powers and to perform such functions in connection with the conduct of elections to the Municipalities/Nagar Panchayats.

(ii)

The District Collector shall be the District Election Authority. The functions of the Election Authority under these rules may also be performed unless specifically otherwise provided, by the District Election Authority with his jurisdiction.

(iii)

Subject to the general superintendence, direction and control of the Election Authority, the District Election Authority shall be responsible for the conduct, co-ordination and supervision of all arrangements in connection with the conduct of elections to the offices of Chairperson of the Municipal Councils/Nagar Panchayats within his jurisdiction.

4.

(1)

The Election Officer shall affix a notice on the board of the Municipal Officer showing the voters list pertaining to the various wards of the Municipality/Nagar Panchayat on the day of the publication of the notice under the rules.

(2)

The Election Officer shall, after affixing the notice of voters list under sub-rule (1) publish any alteration made upto and inclusive of the last day fixed for the receipt of nominations, as alterations to the electoral roll for the Municipality/Nagar Panchayat on the notice board of the Municipality/Nagar Panchayat as a supplementary voters' list atleast fifteen days prior to the date fixed for the poll.

5.

The Election Officer shall prepare and publish a notice on the notice board of the Municipality/Nagar Panchayat and in one or more conspicuous places in each ward of the Municipality/Nagar Panchayat in English and in the main language of the District stating--

(a)

the category for which it is reserved in case of Municipal Councils/Nagar Panchayats for which the office of the Chairperson is reserved for Scheduled Tribes/Scheduled Caste/Women/Backward Classes under *[Section 23(1)(c)(i), (ii), (iii) and (iv)] of the Act;

(b)

the date, the place and the hours between which and to whom nomination papers shall be presented which shall be a date not earlier than the fourth day and not later than the tenth day after the date of publication of the election notice, whether or not it is a public holiday;

(c)

the date on which, the hours between which and the place at which the nomination will be taken up for scrutiny such date being the date next to the last fixed for the presentation of nomination papers whether or not it is a public holiday;

(d)

the time and place at which the poll will take place shall be published in such manner as the Election Officer may direct and the total period allotted to any day for polling at an election shall not be less than eight hours;

(e)

the time and the place at which the Election Officer will commence the counting of votes.]

6.

(1)

Nomination of every candidate shall be made by means of nomination paper in Form-I, which shall, on application, be supplied free of cost by the Election Officer to any elector whose name is on the electoral roll of the Municipality/Nagar Panchayat:

Provided that not more than four nomination papers shall be presented by or on behalf of any candidate or accepted by the Election Officer for election as Chairperson;

Provided further that in case of Municipal Councils/Nagar Panchayats for which the office of the Chairperson is reserved for Scheduled Castes/Scheduled Tribes/Backward Classes/ Women, a declaration prescribed under sub-rule (7) shall also be enclosed.

(2)

Every nomination paper shall be signed by one such elector as, propose and the candidate shall sign a declaration on it expressing his willingness to stand for election.

(3)

Each candidate shall be nominated by a separate nomination paper. An elector standing as a candidate for the election of Chairperson shall not sign his own nomination paper as proposer.

(4)

Every nomination paper shall be presented by the candidate in person or by his proposer on any of the date notified at the place specified and during the hours appointed, to the Election Officer or to such other person as may be authorised by him in this behalf. The Election Officer or such other authorised person shall forthwith number the nomination papers serially in the order in which they are presented and enter on each nomination paper, the date and time at which it is presented. He shall give a receipt for the same as in Form-I.

(5)

The rejection of a nomination paper of any candidate on the ground of any irregularity in respect thereof shall not affect the validity of the nomination of the candidate if the candidate has been duly nominated by means of another nomination paper in respect of which no irregularity has been committed.

(6)

No nomination paper shall be received after the specified time at the dates notified for the presentation of nomination papers.

(7)

In the case of every nomination filed by a candidate belonging to Scheduled Castes, Scheduled Tribes and Backward Classes a declaration in Form-III made before an Officer not below the rank of a Deputy Tahsildar (Mandal Revenue Officer) of the Revenue Department by the candidate, shall be attached to the nomination.

7.

(1)

On the presentation of a nomination paper, the Election Officer or other authorised person referred to in sub-rule (4) of Rule 6 may require the person or persons presenting the same to produce a copy of the Electoral roll on which the candidate and his proposer are registered or of the necessary entries therein and shall satisfy himself that the name and number of the candidate and his proposer, as entered in the nomination paper, are the same as those entered in the electoral roll.

(2)

The Election Officer may interpret an entry in the electoral roll so as to overlook merely clerical or printing errors but he shall record the interpretation adopted by him together with the reasons therefor.

8.

(1)

At or before the time of the presentation of his nomination paper or papers, each candidate wishing to stand for an election as Chairperson shall deposit or cause to be deposited with the Election Officer in cash or in Government

promissory notes of equal value at the market rate of the day, a sum of rupees one hundred and twenty five if he is a member of the Scheduled Tribes or the Scheduled Castes or Backward Classes or a sum of rupees two hundred and fifty if he is not member of such tribes, castes or classes and no candidate shall be deemed to be duly nominated for the election as Chairperson if such deposit has not been made.

Explanation. - The delivery to the Election Officer of a receipt from a Government Treasury or Bank wherein the Municipal Council/Nagar Panchayat has an account evidencing the payment by or on behalf of a candidate to the credit of the Municipal Council/Nagar Panchayat, of the amount required to be deposited under this sub-rule shall be deemed to be a deposit of such amount within the meaning of this sub-rule made by or on behalf of such candidate at the time of such delivery.

(2)

If no nomination paper is received within the time appointed in that behalf in respect of any person by whom or on whose behalf the deposit referred to in sub-rule (1) has been made or if the nomination of any such person has been rejected or the candidate has withdrawn his candidature in the manner and within the time specified in sub-rule (1) of Rule 13, the deposit shall be returned to the person by whom it was made and if any candidate dies before the commencement of the poll, any such deposit, if made by him shall be returned to his legal representative or if not made by the candidate shall be returned to the person by whom it was made or to his legal representative.

(3)

If a candidate by whom or on whose behalf the deposit referred to in sub-rule (1) has been made is not elected and the number of valid votes polled by him does not exceed one-sixth of the valid votes polled, the deposit shall be forfeited to the Municipal Council/Nagar Panchayat.

(4)

For the purpose of sub-rule (3) the number of valid votes polled shall be deemed to be the number of ballot papers other than spoiled ballot papers counted.

(5)

The deposits made by all the candidates which shall not be forfeited under sub-rule (3) shall be returned to the candidates or to the persons who have made the deposits on their behalf as the case may be, as soon as may be after the publication of the result of the election in the Andhra Pradesh Gazette.

(6)

Notwithstanding anything contained in this rule, a deposit made under sub-rule (1) shall not be returned unless a claim therefor is delivered or sent by post to the Election Officer by the person who made the deposit or by his legal representative, as the case may be, within six months of the date of the declaration by the Election Officer of the results of the election or where such declaration is made on two different dates, within six months of the latter of such dates.

9.

On the last day for the receipt of nomination papers and immediately after the hour for their receipt is passed, the Election Officer or other authorised person referred to in sub- rule (4) of the Rule 6 shall publish in the Municipal Office a list in Form II of all nominations received with a notice that the nomination papers will be taken up by the Election Officer for scrutiny at the Municipal Office or other specified place on the date and time specified under Rule 5.

10.

(1)

On the date appointed for the scrutiny of nominations, the candidates, their election agents, one proposer of each candidate and one other person duly authorised in writing by each candidate and except for the purpose of assisting the Election Officer, no other person may attend at such time and place as may be specified under Rule 9 and the Election Officer shall give such persons all reasonable facilities to examine the nomination papers of all candidates which have been received as decided.

(2)

The Election Officer shall then examine the nomination papers and shall decide all objections which may be made in application or on his own motion after such summary inquiry, if necessary, and reject any nomination on any of the following grounds--

(i)

that the candidate is ineligible for election under *[Sections 13, 13-A, 13-B, 14, 15, 19 and 23 of the Act;]

(ii)

that the proposer is a person whose name is not registered on the electoral roll;

(iii)

that there has been a failure on the candidate or his proposer to comply with any of the provisions of Rule 6 or Rule 8;

(iv)

that in the case the office of Chairperson is solely reserved for any community or communities or for. Women, the candidate does not belong to the community or any of those communities or is not woman as the case may be:

Provided that the nomination of a candidate shall not be rejected merely on the ground of any incorrect description of his name or of the name of his proposer or any of the other particulars relating to the candidate or his proposer as entered on the electoral roll, if the identity of candidate or proposer as the case may be, is established beyond reasonable doubt;

Provided further that the Election Officer shall not reject any nomination paper on the ground of any defect which is not of a substantial character.

(3)

The Election Officer shall endorse on each nomination paper his decision accepting or rejecting the same and if the nomination paper is rejected, shall record in writing a brief statement of his reasons for such rejection. The scrutiny shall be completed on the day appointed in this behalf under Rule 5 and no adjournment of the proceedings shall be allowed except when such proceedings are interrupted or obstructed by riot or violence or causes beyond the control of the Election Officer.

(4)

When the scrutiny has been completed, a list of validly nominated candidates shall be published in Form II-A. There shall be one entry only in respect of each validly nominated candidates in the list, although more nomination papers than one in respect of him may have been accepted as valid. If none of the nomination papers is found valid on scrutiny, the name of the candidate should not be entered in the list.

11.

[xxxx].

12.

(1)

Any candidate may withdraw his candidature by notice in writing in Form II-B, signed by him and delivered to the Election Officer at any time after presentation of his nomination paper or papers and before three O' Clock on the third day after scrutiny of nominations whether or not it is a public holiday unless the notice is delivered by the candidate himself to the Election Officer, the candidate's signature on the notice shall be attested by a person empowered to attest Vakalats.

Explanation. - The persons authorised to attest Vakalats are (1) Gazetted Officers (2) MLAs (3) M.Ps. (4) Members of Zilla Parishads (5) Members of Panchayats (6) Municipal Members (7) A retired Gazetted Officer receiving pension from Government (8) the Manager of the Office of the Commissioner, Endowments Department (9) Any Inspector working under the Commissioner, Endowments Department (10) An Advocate or Pleader other than the Advocate or Pleader in whose favour the Vakalatnama is executed or appointment made or notary as defined in the Notaries Act, 1952 (Central Act 43 of 1952).

(2)

The Election Officer on receiving a notice of the withdrawal under sub-rule (1) shall as soon as may be cause a notice of the withdrawal in Form II-C to be affixed on the notice board of the Municipal Office. (3) A candidate who has withdrawn his candidature under sub-rule (1) shall not be allowed to cancel the withdrawal.

13.

(1)

On the expiry of the time allowed for withdrawal of candidature under Rule 12(1) the Election Officer shall prepare a list in Form-IV of persons whose nominations have not been rejected and who have not withdrawn their candidature which may be called as list of contesting candidates and publish it on the notice board of the Municipal Office forth-with whether or not it is a public holiday and in any case atleast twelve days before the date fixed for the election.

(2)

The names of the candidates shall be arranged with reference to surnames of the candidates in alphabetical order in Telugu. Where there is no surname, the proper name shall be taken into consideration and when the initials only precede the proper name, the initials have to be ignored while arranging the names in the list of contesting candidates. If

a poll is found to be necessary, the Election Officer shall also specify the distinctive symbols assigned to them under sub-rule (3):

Provided that if two or more candidates bear the same name, they shall be distinguished by the addition of their occupation or residence or in some other manner. The names of such candidates should be arranged in the order in which their nominations were received by the Election Officer.

(3)

If a poll is found to be necessary the Election Officer shall assign to each candidate, subject to such directions as may be issued by the Election Authority in that behalf, a distinctive symbol:

Provided that a candidate set up by a National Party for the election of Chairperson of a Municipality/Nagar Panchayat shall choose and shall be allotted the symbol reserved for that party and no other symbol. A candidate set up by a State Party for the election of Chairperson of a Municipality/Nagar Panchayat shall choose and shall be allotted the symbol reserved for that party and no other symbol. A reserved symbol shall not be chosen by or allotted to any candidate other than a candidate set up a National Party for whom such symbol has been reserved or a candidate set up by a State Party for whom such symbol has been reserved in the State in which it is a State Party, even if no candidate has been set up by such National or State Party. A symbol once assigned to a candidate shall not be altered, after a list of contesting candidates is published.

Explanation. - A candidate shall be deemed to be set up by a National party or State Party, if the Candidate has made a declaration to that effect in his nomination paper and the said candidate by a notice in writing to that effect has, not later than 3.00 P.M. on the last day of withdrawal of candidatures, been delivered to the Election Officer signed by the President, the Secretary or any other office, bearer authorised by the party to send such notice and the name and specimen signature of the President, Secretary or such other office bearer are communicated in advance to the Election Officer.

(4)

In every case where a symbol has been assigned to a candidate under sub-rule (3) such candidate or his election agent shall forthwith be informed of the symbol be assigned and be supplied with a specimen thereof by the Election Officer.

14.

After the list of contesting candidates is published under Rule 13, if there is only one contesting candidate the Election Officer shall declare the candidate as duly elected. If the number of contesting candidates is more than one, a poll be held. If there are no valid nominations to fill the seats, the Election Officer shall start proceedings afresh for filling the said vacancy in all respects as if for a new election.

15.

If after the publication of list of contesting candidates] a poll has become necessary and before the poll is taken, a candidate who has been duly nominated dies, the Election Officer shall, upon being satisfied of the fact of the death of the candidate, countermand the poll and the election proceedings shall be started afresh in all respects as for a new elections:

Provided that no fresh nomination shall be necessary in the case of a candidate who stood nominated at the time of countermanding of the poll;

Provided further that no person who had under sub-rule (1) of Rule 12 given notice of withdrawal of his candidature, before the countermanding of the poll shall be ineligible for being nominated as a candidate for the election after such countermanding.

16.

(1)

Every person nominated as a candidate for an election may appoint in writing some other person to be his election agent. The appointment shall be in Form-V and notice of appointment shall be given in writing to the Election Officer.

(2)

When a candidate for election appoints some person to be his election agent, he shall obtain in writing, the acceptance by such person for the office of such election agent.

(3)

No person shall be appointed as an election agent who is disqualified under Section 15 of the Andhra Pradesh Municipalities Act, 1965, excepting those mentioned in Clauses (f) and (g) of sub-section (2) thereof.

(4)

(i)

Any revocation of the appointment of an election agent shall be signed by the candidate and shall operate from the date on which it is lodged with the Election Officer.

(ii)

In the event of such revocation or of the death of an election agent, the candidate may appoint in like manner another person to be his election agent; and when such appointment is made, notice thereof shall be given in the manner laid down in sub-rules (1) and (2) to the Election Officer.

(5)

Every election agent shall perform such functions in connection with each election for which he is appointed as election agent, as are required to be performed by such agent.

17.

(1)

When a poll is to be taken at the polling station each candidate or his election agent may appoint an agent and two relief agents to act as polling agent of such candidate at each polling station or, where a polling station has more than one polling booth, at each such polling booth for the poll as the case may be, and such appointment shall be made by a letter in writing in duplicate in Form-VI signed by the candidate for his election agent, if any, under intimation to the Election Officer atleast three days before the commencement of the poll.

(2)

The candidate or his election agent shall also deliver the duplicate copy of the letter of appointment to the polling agent who shall, on the date fixed for the poll present the copy to and signed the declaration contained therein before the Presiding Officer of the polling station where such polling agent is appointed for duty and the presiding officer shall thereafter retain it in his custody. No polling agent shall be allowed to perform any duty at the polling station or at place fixed for the poll unless he has complied with the provisions of this sub-rule.

18.

(1)

Each candidate or his election agent may before the commencement of the counting of votes appoint a counting agent of such candidate by a letter in writing in duplicate in Form VII signed by the candidate or his election agent, if any.

(2)

As soon as may be after the appointment of the counting agent of a candidate, and in any case before the commencement of the counting of votes, the candidate or his election agent shall give notice of the appointment of such counting agent to the Election Officer by forwarding to such Officer the letter of appointment, referred to in sub-rule (1) thereof.

(3)

The candidate or his election agent shall also deliver the duplicate copy of the letter of appointment to the counting agent who shall, on the date fixed for the counting of votes present the copy to, and sign the declaration contained therein before the Election Officer, and the Election Officer shall thereafter retain it in his custody. No counting agent shall be allowed to perform any duty at the counting of votes unless he has complied with the provisions of this sub-rule.

19.

(1)

Any revocation of the appointment of a polling agent shall be signed by the candidate or his election agent as the case may be, such revocation shall operate from the date on which it is lodged with the Election Officer and in the event of such revocation or of the death of a polling agent before the close of the poll the candidate or his election agent may appoint another polling agent at any time before the poll is closed and shall forthwith give notice of such appointment as laid down in Rule 18(1) to the Election Officer.

(2)

Any revocation of the appointment of a counting agent shall be signed by the candidate or his election agent as the case may be. Such revocation shall operate from the date on which it is lodged with the Election Officer. In the event of a revocation or of the death of counting agent at any time before the counting of votes in commenced, the candidate or his election agent may appoint another person as the counting agent and when an appointment is made, a notice of such appointment in the manner prescribed above shall be given to the Election Officer.

20.

(1)

At every election where a poll is taken, each candidate at such election and his election agent shall have a right to be present at any polling station.

(2)

A candidate or his election agent may himself do any act or thing which any polling agent or the counting agent of such candidate, if appointed would have been authorised by or under these rules to do, or may assist any polling agent or the counting agent of such candidate in, doing any such candidate in, doing any such act or things.

21.

Where any act or thing is required or authorised by or under these rules to be done in the presence of the polling or counting agent, the non-attendance, of any such agent or agents at the time and place appointed for the purpose shall not, if the act or thing is otherwise duly done, invalidate the act or thing done.

22.

At an election in a ward where a poll is taken, any member of the Armed Forces of the Union or a member of the Armed Police Force of the State serving outside the State may give his vote by a postal ballot and such person shall not be entitled to give his vote in any other manner. The wife of any such person referred to above may give her vote by postal ballot at any election in such ward where a poll is taken.

23.

(1)

Subject to the other provisions of these rules, a voter of a ward may if he is subjected to preventive detention under any law for the time being in force, give his vote by postal ballot at any election in such ward where a poll is taken.

(2)

As soon as possible, after notice is published under Rule 5, the election officer shall ascertain in writing from the Collector of the District whether any voter in that Municipality/Nagar Panchayat is subjected to preventive detention under any law for the time being in force. The Collector shall within ten days from the date of receipt of such communication from the Election Officer forward list of names of any such voters in that Municipality/Nagar Panchayat if any, together with their addresses and the particulars about their place of detention to the Election officer.

(3)

Any voter who is subjected to preventive detention under any Law for the time being in force or on his behalf any member of his family may within fifteen days from the date of publication of the notice, apply to the Election Officer of the ward for permission to give his vote by postal ballot at the election. Every such application shall specify the name of the voter, his address, his serial number in the electoral roll and the particulars relating to his place of detention.

(4)

If the Election Officer is satisfied that the person whose name has been forwarded under sub-rule (2) or who has made an application under sub-rule (3) is under preventive detention and is a voter in the ward to which the election relates and is entitled to vote at such election, he shall permit such person to give his vote at the election by postal ballot.

(5)

While granting any such permission, the Election Officer shall, at the same time, put letter 'P.B.' which means that Postal Ballot paper has been issued, be recorded in such copy of the electoral roll in which such person's name is registered and which is intended to be used at the polling station where such person should, if he had not been under detention have normally voted, so as to indicate that such person has been permitted to give vote at the election by postal ballot.

24.

(1)

The Election Officer shall, in the case of every voter who is entitled under Rule 22 or who has been permitted under sub-rule (4) of Rule 23, to give his vote at the election by postal ballot, as soon as may be after the publication under * [Rule 13] of the list of candidates at the election, send by registered post to each such voter a ballot paper or papers along with the copy of instructions contained in Form VIII. He shall note down the electoral Part Number and Serial Number of the elector as entered in the marked copy of the electoral roll on the counterfoil of the ballot paper and detach the ballot paper from the counterfoil.

(2)

Along with the ballot paper, the Election Officer shall also send--

(a)

a cover addressed to himself in Form IX;

(b)

an envelope with the number of the ballot paper entered on its face; and

(c)

a letter in Form X. The Election Officer shall have the number of the ballot paper entered at the left hand bottom corner of the cover in Form IX.

(3)

The ballot paper together with the cover envelope and letter shall be sent--

(a)

in the case where the voter is a member of the Armed Forces of Union or a member of the Armed Police Force of the State serving outside the State to the voter as shown in the electoral roll;

(b)

in the case where the voter is a person subjected to preventive detention, to such voter at the place at the place of his detention.

(4)

After all the ballot papers have been issued under these rules, the Election Officer, shall seal in a separate packet the counterfoils of the ballot papers issued to the voters entitled to vote under postal ballot and record on the packet a brief description of its contents, and the date on which it was sealed.

(5)

No election shall be invalidate by reason that a voter has not received his ballot paper or papers.

25.

(1)

Every voter on receiving his ballot paper sent under Rule 24 shall if he desires to vote at the election, record his vote thereon and sign the declaration on its back in accordance with the letter and instruction sent with the ballot paper.

(2)

the voter shall then place the ballot paper in the envelope, close the envelope, enclose it in the cover and send the cover tot the Election Officer in accordance with the instruction contained in the letter so as to reach him before 5 p.m. on the date fixed in this behalf by the Election Officer. Any cover which is not received by the Election Officer before 5 p.m. on the date so fixed shall be rejected. All such rejected covers shall be kept in a separate sealed packet by the Election Officer.

26.

A voter shall obtain attestation of his signature but not of his vote on the postal ballot paper by a Magistrate to whom the voter is personally known or to whose satisfaction the voter has been identified; or

(a)

in the case referred to in clause (a) of sub-rule (3) of Rule 24 by such officers as may be appointed in this behalf by the commanding officers of the unit in which the voter is employed; and

(b)

in the case referred to in clause (b) of sub-rule (3) of Rule 24 by the Superintendent of the Jail or the commandant of the detention camp in which the voter is under detention.

27.

(1)

If a voter to whom ballot paper has been sent under Rule 24 is illiterate or is unable due to physical incapacity to record his vote and sign the declaration on the back of the ballot paper in accordance with provisions of Rule 25, it shall be competent for him to make his declaration and to record his vote by the hand of any officer empowered to attest his signature and declaration under Rule 26.

(2)

Any such voter as aforesaid may deliver the ballot paper together with the envelope and the cover received by him from the Election Officer to any officer referred to in sub-rule (1) and such officer shall on being so requested by the voter--

(a)

certify on the back of the ballot paper the voter's incapacity; and

(b)

attest the fact that he was requested by the voter

(i)

to sign the declaration on the back of the ballot paper; and

(ii)

to mark the ballot paper for him.

(3)

Such Officer shall further certify that he has put the mark on the ballot paper in accordance with the wishes of the voter and that the ballot paper was so signed and marked by him in the presence of the voter.

(4)

Such Officer shall thereupon place the marked ballot paper in the envelope and close the same and enclose it in the cover which he shall seal and handover to the voter. The voter shall then send the sealed cover forthwith to the Election Officer in accordance with the instructions contained in the letter sent to the voter along with the ballot paper so as to reach the Election Officer before 5 p.m. on the date fixed under sub-rule (2) of Rule 25. Any cover which is not received by the Election Officer before 5 p.m. on such date shall be rejected and kept along with the covers rejected under the said sub-rule.

28.

(1)

When a ballot paper and other connected papers sent by registered post under Rule 25, are for any reason returned undelivered, the Election Officer may re-issue them by registered post.

(2)

In cases where any voter has inadvertently dealt with his ballot paper or any of the connected papers in such manner that the papers cannot conveniently be used, the Election Officer after satisfying himself of the inadvertence may issue a second set of a ballot paper and other connected papers to the voter or the voters returning the ballot paper and other connected papers. The papers so returned shall be marked as cancelled by the Election Officer. The paper so cancelled shall be kept in a separate envelope set apart for the purpose.

29.

The Election Officer shall keep in safe custody until the commencement of the counting of votes of all voters containing postal ballot papers received by him under Rule 25 or Rule 27.

30.

(1)

A polling station shall have one or more polling booths. If a poll has to be taken, the Election Officer shall appoint forthwith a presiding officer and one or more Polling Officers, for each polling booth and may pay them reasonable remuneration for their services. The Election Officer shall provide for each Presiding Officer such number of clerks as may be necessary and may also, if necessary, appoint one or more identifying officers to assist the Presiding Officers in identifying the electors. The polling personnel shall not consist of any Members or an officer or other employee of the Municipality/Nagar Panchayat except those appointed as identifying officers:

Provided that if a Polling Officer is absent from the polling Station, the Presiding Officer may appoint any person who is present at the polling station other than a person who has been employed by or on behalf of or has been otherwise working for a candidate in or about the election, to be the Polling Officer during the absence of the former Officer and inform the Election Officer, accordingly;

Provided further that nothing in this sub-rule shall prevent the Election Officer from appointing the same person to be the Presiding Officer for more than one polling station in the same premises.

(2)

A Polling Officer shall, if so directed by the Presiding Officer perform all or any of the functions of a Presiding Officer under these rules or any rule or orders made thereunder.

(3)

If the Presiding Officer owing to illness or other unavoidable cause is obliged to absent himself from the polling station, his function shall be performed by such polling officer as has been previously authorised by the Election Officer to perform such functions during any such absence.

(4)

The Presiding Officer shall keep order at the Polling station; shall see that the election is fairly conducted; shall regulate

the number of electors to be admitted at one time and shall exclude all other persons except--

- (a) the candidates and at each booth one agent of each candidate at a time (hereinafter referred to as the polling agent;)
- (b) the Police or other public servants on duty;
- (c) his own clerks and such persons as the Presiding Officer may from time to time admit for the purpose of identifying electors;
- (d) a child in arms accompanying a voter; and
- (e) the companion of blind and inform voters who cannot move without help.

(5)

(1) Where a woman elector cannot be identified by the identification officers appointed under sub-rule (1) by reason of her observing Purdah'; she may be required to be identified by any of her near relatives unless she otherwise satisfies the Presiding Officer of her identity.

(2)

If any question arises as to whether a person is or is not a near relative within the meaning of clause (a) above, it shall be decided by the Presiding Officer and his decision shall be final.

(6)

It shall be the duty of Polling Officers and clerks provided by the Election Officer at a Polling Station/Booth to assist the Presiding Officer for such station/booth in the performance of his functions.

31.

Each Polling Station and at a polling station having more than one polling booth, each such booth shall contain a separate compartment in which electors can record their votes screened from observation. As far as possible, separate compartments and separate entrances and exits shall, where action is not taken under Rule 32, be provided for women electors.

32.

Notwithstanding anything herein before contained, the Election Officer may, at its discretion, if sufficient number of women suitable and willing to act as Polling Officer are available, provide a separate polling station for taking the votes of women electors for any polling area or make such other arrangements as may be necessary to ensure the privacy of such electors.

33.

(1)

No person shall on the date or dates on which a poll is taken at any polling station commit any of the following acts within the Polling Station or in any public or private place within a distance of one hundred meters of the Polling Station:

- (a) canvassing for votes; or
- (b) soliciting the vote of any elector; or
- (c) persuading any voter not to vote for any particular candidate; or
- (d) persuading any elector not to vote at the election; or
- (e) exhibiting any notice or sign (other than an official notice) relating to the election.

(2)

Any person who contravenes the provision of sub-rule (1) shall be punishable with fine which may extend to one hundred rupees.

34.

The Election Officer shall provide at each Polling Station sufficient number of ballot-boxes together with copies of the

electoral roll or such part thereof containing the names of the electors entitled to vote at the station and such other papers, and articles necessary for electors to mark the ballot papers, stationery and forms as may be necessary. He shall further display in bold and clear manner the name of each candidate, the serial number and the symbol assigned to him and the seal for which the election is held. The Election Officer should also display a notice specifying the Polling area the electors of which are entitled to vote at the polling station.

35.

(1)

Where a paper seal is used for securing a ballot box, the Presiding Officer shall affix his own signature on the paper seal and obtain thereon the signature of such of the candidates or their polling agents present who are desirous of affixing the same.

(2)

The Presiding Officer shall thereafter fix the paper seal so signed in the space meant thereof in the ballot box and shall then secure and seal the Box in such manner that the slit for the insertion of ballot paper therein remains open.

(3)

the seals used for securing a ballot box shall be affixed in such manner that after the box has been closed it is not possible to open it without breaking the seal.

(4)

Where it is not necessary to use paper seals for securing the ballot boxes, the Presiding Officer shall secure and seal the ballot box in such manner that the slit for the insertion of ballot paper remains open and shall allow the polling agents present to affix if they so desire their seals.

(5)

Every ballot-box used at a polling station shall bear labels both inside and outside marked with--

(a)

the serial number if any, and name of the ward;

(b)

the serial number and name of the Polling Station;

(c)

the serial number of the ballot-box to be filled in at the end of the poll on the label outside the ballot-box only; and

(d)

the date of poll.

(6)

Immediately before the commencement of the poll, the Presiding Officer shall demonstrate to the polling agents and other persons present that the ballot-box is empty and bears the labels referred to in sub-rule (5).

(7)

The ballot-box shall be closed, sealed and secured and placed them in full view of the Presiding Officer and the polling agents.

(8)

Before the polling station is opened for the recording of the votes the Presiding Officer shall read to such persons as may be present the provisions of Section 18 of the Act, and shall explain the substance thereof in the main language of the District.

35A.

Immediately before the commencement of the Poll, the Presiding Officer shall also demonstrate to the polling agents and others present that the marked copy of the electoral roll to be used during the poll does not contain, any entry other than that made in pursuance of the Rules 22, 23, 24 and 48 and any mark other than the mark made in pursuance of the Rules 22, 23, 24 and 48.

36.

The manner of voting shall be by way of marking system. Every ballot-paper shall be in Form XI which shall be in such colour as may be specified by the Election Authority.

37.

Every ballot paper, before it is issued to an Election and counterfoil attached thereto, shall be stamped in the back with such distinguishing mark as the Election Authority may direct and every ballot paper before it is issued shall be signed in

full on its back by the Presiding Officer.

38.

(1)

Every elector who applies for a ballot paper or ballot papers for the purpose of voting at a polling station, shall, before receiving such paper or papers; allow--

(a)

the inspection of his left fore-finger by the Polling Officer; and

(b)

an indelible ink mark to be put on his left fore-finger.

(2)

if any such elector--

(a)

refused to allow such inspection of his left fore-finger; or

(b)

refuses to allow an indelible ink mark to be put on his left fore-finger; or

(c)

refuses to put his signature or thumb impression on the counterfoil; or

(d)

does any act in order to remove any such mark after it has been put; he shall not be entitled to be supplied with any ballot paper or to record his vote at the election.

(3)

A person who is already having a mark on his left fore-finger at the time he enters the Polling Station shall not be supplied with any ballot paper.

(4)

Any reference in this rule to the left fore-finger of an elector shall in the case where the elector has no left forefinger, be construed as a reference to any other finger of his left hand and shall in the case where there are no fingers on his left hand be construed as a reference to the forefinger or any other finger of his right hand and shall in the case where he has no finger on his right hand and shall in the case where he has no finger on both the hands be construed as a reference to such extremity of his right or left arm as he possess.

(5)

The Polling Officer shall, at the time of delivery of the ballot paper to an elector, underline the entry of the voter in the marked copy of the electoral roll in his possession to denote that such voter has received a ballot paper.

(6)

in deciding the right of persons to obtain a ballot paper under this rule, the Presiding Officer at any polling station may interpret an entry in the electoral roll so as to overlook merely clerical or printing errors, provided that he is satisfied that such person is identical with the voter to whom such entry relates.

39.

An elector shall be given only one ballot paper.

40.

Immediately before any ballot paper is delivered to an elector--

(a)

the number, name and description of the elector as stated in the electoral roll shall be called out; and

(b)

The Polling Officer shall record the electoral roll, Part No. and Serial No. of the voter as entered in the marked copy of the electoral roll on the counter foil of the ballot paper and obtain his signature or thumb impression thereon.

41.

(1)

The elector on receiving the ballot paper shall forthwith--

(a)

proceed to one of the voting compartments;

(b)

there make a mark on the ballot paper with the instrument supplied for the purpose on or near the symbol of the candidate for whom he intends to vote;

(c)

fold the ballot-paper so as to conceal his vote;

(d)

if required, show to the Presiding Officer the distinguishing mark of the ballot paper;

(e)

insert the folded ballot paper into the ballot box; and

(f)

quit the polling station.

(2)

Every elector shall vote without undue delay.

(3)

No elector shall be allowed to enter a *[voting compartment] when another elector is inside it.

(4)

Every elector to whom a ballot paper under Rule 37 or under any other provision of these rules shall maintain secrecy of voting within the polling station and for that purpose observe the voting procedure therein laid down.

(5)

If an elector to whom a ballot paper has been issued refuses after warning given by the Presiding Officer to observe the procedure as laid down in sub-rules (1) and (2), the ballot paper issued to him shall whether he has accorded his vote thereon or not be taken back from him by the Presiding Officer or a Polling Officer under the direction of the Presiding Officer.

(6)

After the ballot paper has been taken back the Presiding Officer shall record on its back the words "cancelled-voting procedure violated" and put his signature below those words.

(7)

All the ballot papers on which the words "cancelled-voting procedure violated" are recorded shall be kept in a separate cover which shall bear on its face the words "Ballot papers; voting procedure violated".

(8)

Without prejudice to any other penalty to which an elector from whom a ballot paper has been taken back under sub-rule (5) may be liable the vote, if any recorded on such ballot paper shall not be counted.

42.

(1)

If the Presiding Officer is satisfied that owing to blindness or other physical infirmity and elector is unable to recognise the symbols on the ballot paper or to make a mark thereon without assistance the Presiding Officer shall permit the elector to take with him a companion of the age not less than eighteen years to the voting compartment for recording the vote on the ballot paper on his behalf and in accordance with his wishes and if necessary for folding the ballot paper so as to conceal the vote and insert it into the ballot box:

Provided that no person shall be permitted to act as the companion of more than one elector at any polling both on the same day;

Provided further that when any person is permitted to act as the companion of an elector on any day under this rule the person shall be required to declare that he shall keep secret the vote recorded by him on behalf of the elector and that he has not already acted as the companion of any other elector at any polling booth on that day.

(2)

The Presiding Officer shall keep declarations in Form-XI-A and the list in Form XI-B in sealed covers and send them to the Election Officer along with the other covers.

43.

Special facilities in accordance with the instructions if any issued by the election authority in that behalf may be accorded to women electors.

44.

(1)

When a person presents himself to vote *[.....] before a ballot paper is supplied to him the Presiding Officer may on his own accord and shall if so required by a candidate or polling agent put to such either or both of the following questions--

(i)

are you the person enrolled as follows (reading the whole entry from the roll)

(ii)

have you already voted at the present election at this polling station and the persons shall not be supplied with a ballot paper unless he gives an unqualified answer to the first question or question put to him and unless his answer to the first question is in the affirmative and the second is in the negative. Except as mentioned herein and subject to the provisions of *[Section 11] of the Act every person whose name is found on the electoral roll shall be entitled to be supplied with a ballot paper.

(2)

No person shall vote at an election in more than one ward of the same class and if a person votes in more than one such ward his votes in all such wards shall be void.

(3)

No person shall at any election vote in the same ward more than once notwithstanding that his name has been registered in the electoral roll for that ward more than once and if he does so vote, all his votes in that ward shall be void.

(4)

No person shall vote at any election if he is confined in prison whether under a sentence of imprisonment or transportation or otherwise or is in the lawful custody of the Police:

Provided that nothing in this sub-rule shall apply to a person subjected to preventive detention under any law for the time being in force.

45.

(1)

If a person representing himself to be a particular elector applies for a ballot paper after another person has already voted as such elector he shall on satisfactorily answering such questions relating to his identity as the Presiding Officer may ask be entitled subject to the following provisions of this rule to mark a ballot paper hereinafter in these rules referred to as a tendered ballot paper" in the same manner as any other elector.

(2)

Every such person shall before being supplied with a tendered ballot paper, sign his name against the entry relating to him in a list in Form XII.

(3)

A tendered ballot paper shall be the same as the other ballot papers used at the polling except that it shall be-

(a)

serially the last in the bundle of the ballot-papers issued for use of the polling station; and

(b)

endorsed on the back of the ballot paper and its counterfoil with the words "Tendered ballot paper" by the Presiding Officer in his own hand duly signed by him.

(4)

The elector, after making a tendered ballot paper in the voting compartment and folding it, shall, instead of putting it into the ballot-box, give it to the Presiding Officer, who shall place it in a cover specially kept for the purpose.

46.

(1)

If any candidate, polling agent or election agent declares and undertakes to prove that any person by applying for a ballot paper has committed the offence of personation, the Presiding Officer shall call upon the candidate or the agent bringing forward the charges of personation to deposit with him a sum of five rupees in cash. A separate deposit shall be required for proceedings with each of personation. If such deposit is not made the Presiding Officer shall ignore the challenge.

(2)

Immediately the deposit required by sub-rule (1) has been made, the Presiding Officer shall obtain a written statement in

Form XIII which shall be signed by the candidate or the agent, as the case may be in the presence of the Presiding Officer.

(3)

The Presiding Officer shall then require the applicant for the ballot paper to enter in the list of challenged votes (which shall be in Form XIV) his name and address or if he is unable to write, to affix his thumb impression thereto and may further require such person to produce evidence of identification.

(4)

If the applicant for the ballot paper on being questioned in the manner provided in Rule 44 gives unqualified answer to the first question in the affirmative and to the second in the negative, he shall be allowed to vote after he has been informed of the penalty for personation. If, after the enquiry, the Presiding Officer considers that the challenge has not been established, he shall allow the person challenged to vote; and if he considers that the challenge has been established, he shall debar the person challenged from voting.

(5)

If the Presiding Officer is of the opinion that the challenge is frivolous or has not been made in good faith, he shall direct that the deposit made under sub-rule (1) be forfeited to the municipality and in any other case, he shall return it to the challenger at the conclusion of the inquiry.

(6)

If the Presiding Officer shall at the close of the poll, forward to the Election Officer the statement mentioned in sub-rule (2) enclosed in the packet containing the list of challenged votes.

(7)

The Election Officer may immediately make such investigation as may be necessary and take steps to prosecute the person or persons whom he believes to be guilty of the offence of personation. He shall, however, stay the investigation, if notice of an election petition filed before the Election Tribunal and relating to the case under investigation is received and shall resume the investigation after the disposal of the said petition. If it is found as a result of the judicial trial connected with the prosecution that the offence of personation has not been proved, the Election Officer shall order forfeiture of the deposit. In coming to a decision on this point the Election Officer shall be guided by the facts and conclusions recorded at the trial. If there is no such judicial trial, the Election Officer shall at his discretion, decide whether having regard to the relevant circumstances, the deposit shall be declared to have been forfeited to the Municipal Council/Nagar Panchayat. The deposit as has not been declared to have been forfeited shall be returned to the person whom made the deposit.

47.

(1)

An elector who has inadvertently dealt with his ballot paper in such a manner that it cannot be conveniently used as a ballot paper may on returning it to the presiding officer and satisfying him of the inadvertence obtain another ballot paper in place of the spoilt one the later on being marked as "Spoilt : cancelled" by the Presiding Officer.

(2)

If a elector, after obtaining a ballot paper decides not to use it, he shall return it to the Presiding Officer and the ballot paper and the counterfoil thereof shall be marked as 'Cancelled' by the Presiding Officer.

(3)

All ballot papers cancelled under sub-rule (1) and sub-rule (2) shall be kept in a separate packet.

48.

(1)

A Presiding Officer, Polling Officer, Public Servant, Polling agent, or Election agent who being entitled to vote in the wards if duly appointed or authorised for duty at a polling station at which he is not ordinarily entitled to record his vote, may apply to the Election Officer, concerned for a certificate entitling him to record his vote at the polling station where he is employed. The said certificate shall be in Form XV.

(2)

If a Presiding Officer, Polling Officer, Public Servant, Polling agent or Election agent is on duty at a polling station not relating to the ward in which he is entitled to record his vote, the Election Officer shall in addition to the certificate mentioned above furnish the Presiding Officer concerned with particulars regarding the vote which an elector is entitled to give and the names of and serial number and symbols assigned to the candidates, standing for election in that ward

together with a ballot paper relating to such ward and envelope.

(3)

The Election Officer shall in either case immediately send a copy of the certificate to the Presiding Officer of the polling station at which the person, to whom the certificate is issued, is ordinarily entitled to record his vote.

(4)

A person in possession of a certificate in the form prescribed in sub-rule (1) shall deliver the certificate to the Presiding Officer who shall there upon issue to the person, ballot paper in the same manner as to any other elector. Such ballot paper shall be dealt with in the following manner--

(i)

If the polling station at which the person is on duty relates to the ward in which he is entitled to vote, then the provisions contained in Rules 39 and 41 shall apply. The Presiding Officer shall at the end of the poll send the certificate to the Election Officer along with the statement mentioned in sub-rule (5) of Rule 51.

(ii)

If the polling station at which the person is on duty be not in the ward in which he is entitled to vote, the Presiding Officer shall issue the ballot paper with instructions similar to those contained in item (ii) of sub-rule (1) of Rule 44. The person shall proceed into the polling compartment and mark the ballot paper and place in an envelope. He shall then stick the envelope and handover the cover to the Presiding Officer. The Presiding Officer shall make up into separate packets for each ward, the covers in which votes have been so recorded to the connected certificate being fastened to the covers, seal up each such packet in the manner specified in Rule 51 and forward the same to the Election Officer.

49.

(1)

(a)

Where the proceedings at any polling station are seriously interrupted or obstructed by any riot or open violence or otherwise or where a large number of electors are unable to attend the poll at a polling station by reason of natural calamities such as flood or fire or any other sufficient cause, the Presiding Officer shall stop the poll, pending the receipt of the orders of the Election Authority. The fact that the poll has been so stopped shall be immediately announced by the Presiding Officer to the persons present at the polling station.

(b)

If the Presiding Officer considers it necessary to stop polling for a short interval due to heavy rain or dislocation of work in the polling booth for some reason or the other, etc., or disturbance of peace in the neighbourhood of the polling booth due to high tension among the public he can do so by informing the public to that effect under intimation to the Election Officer. In such an event, the poll can be resumed and continued beyond the period fixed for the poll to the extent of the time for which the poll was stopped.

(2)

Where a Presiding Officer stops a poll under sub-rule (1)(a), he shall observe the procedure laid down in Rule 51 and forthwith make a full report of the circumstances to the Election Officer who shall forward the same expeditiously with his remarks thereon, if any, to the Election authority.

(3)

The Election Authority shall thereupon order under the direction of the State Election Commission order-

(a)

that the poll be continued at the polling station for the number of hours for which it was not held on the previous occasion, provided that not less than 50% of the voters had cast their votes; or

(b)

that the proceedings at the poll held at the polling station on the previous occasion be ignored and that a fresh poll be held at such polling station for the full number of hours for which it should have been held on the previous occasion. Any order passed by the Election Authority under this sub-rule shall be final.

(4)

Any order passed under sub-rule (3) shall--

(a)

State--

(i)

the date on which and the hours between which the continuation poll or the fresh poll, as the case may be, shall be held; and

(ii)

the date on which and the place and hour at which, the Election Officer, will commence the counting of the votes under Rule 53, and

(b)

be published in the manner laid down in Rule 5 not less than seven days before the date fixed for the continuation poll or for the fresh poll as the case may be.

(5)

(a)

Where an order is passed under Clause (a) of sub-rule (3) for the continuation of poll, Election Officer shall proceed afresh under sub-rule (1) of the Rule 30 and return to the Presiding Officer appointed under that sub-rule, all the packets received by him under sub-rule (2) of this rule.

(b)

The Presiding Officer shall open the packets just before the commencement of the continuation poll in the presence of such persons as may be present at the polling station and commence such poll precisely at the hour fixed therefor in the order passed by the Election Authority under clause (a) of sub-rule (3).

(c)

At the continuation poll, the Presiding Officer shall allow only such electors to vote who did not vote on the previous occasion.

(6)

Where an order is passed under Clause (b) of sub-rule (3) for holding a fresh poll, the Election Officer shall proceed afresh under sub-rule (1) of Rule 30 and a fresh poll shall be held at the polling station concerned in accordance with the provisions of these rules in all aspects as if it were being held at such polling station for the first time.

Explanation. - There shall be no fresh nominations in cases falling under this sub-rule.

(7)

Notwithstanding anything contained in this rule, if a candidate dies at any time before orders are passed by the Election Authority under sub-rule (3) or at any time after the passing of such orders but before the commencement of the continuation poll or of the fresh poll, as the case may be, the Election Officer shall upon being satisfied of the fact of the death of the candidate, intimate such fact to the Election Authority and, stop all further proceedings in connection with the election and start election proceedings afresh in all respects as if for a new election:

Provided that no fresh nomination shall be necessary in the case of the remaining candidates who stood nominated at the time when the poll was stopped.

50.

(1)

If at any election a ballot is unlawfully taken out of the custody of the Election Officer or the Presiding Officer and is in any way tampered with or is either accidentally or intentionally destroyed or lost, or any such error or irregularity in procedure as is likely to vitiate the poll is committed at a polling station or at a place fixed for the poll, the election to which such ballot box relates shall be valid but only in respect of the polling at the polling station or stations at which such ballot box was used and no further:

Provided that where a polling station more than one polling booth and any such ballot box as aforesaid was used at any of such polling booths in the elections to which such ballot box relates shall be void but only in respect of the polling at the polling booth at which such box was used and no further:

Provided further that if at any election, any such error or irregularity in procedure as is likely to vitiate the poll is committed at a polling station or at a place fixed for the poll, such election shall also be void, but only in respect of the polling at the polling station or place and no further.

(2)

Whenever the election at any polling station or at any polling booth shall become void under sub-rule (1), the Election Officer shall, as soon as practicable after the act or event causing such voidness has come to his knowledge, report the matter to the Election Authority. The Election Authority shall, with the previous approval of the *[State Election Commissioner], appoint a day for taking a fresh polling in such polling station or in such polling booth as the case may

be, and fix the hours for the taking of such poll. The votes cast at such election shall be counted along with the votes cast at the original poll.

(3)

In every such case as aforesaid, the Election Officer shall take fresh poll in such polling station or in such polling booth, as aforesaid on the day so appointed by the Election Authority and shall notify the day so appointed and the hours of polling so fixed in such manner as the *[State Election Commission] may direct and the provisions of the Act and of any rules or orders made thereunder shall apply to every such fresh poll as they apply, to the original poll.

51.

(1)

The Presiding Officer shall close the polling station at the hour appointed for closing under Rule 5 or sub rules (1)(b) and (4) of Rule 49 as the case may be, and shall not thereafter admit any elector into a polling station:

Provided that all electors present at the polling station before it is closed shall be allowed to cast their votes.

(2)

If any question arises as to whether any elector shall, for the purpose of the proviso to sub-rule (1) be deemed to be present within the polling station before it is closed, the question shall be referred to the Presiding Officer whose decision shall be final.

(3)

The Presiding Officer of each polling station, as soon as practicable after the close of the poll, shall close the slit of the ballot box and where the box does not contain any mechanical device for closing the slit, he shall seal up the slit and also allow any polling agent present to affix his seal. The ballot box thereafter be sealed and secured.

(4)

The Presiding Officer of each polling station as soon as practicable after the close of the poll, shall in the presence of any candidate, polling agent or election agent who may be present make up into separate packets and seal with his own seal and the seals of such candidates or agents as may decide to affix their seals--

(i)

the tendered ballot papers;

(ii)

the unused ballot papers or ballot papers with counterfoils or foils;

(iii)

the spoilt ballot papers;

(iii-a) the counterfoils is issued ballot papers including tendered ballot papers;

(iv)

the marked copy of the electoral roll;

(v)

the tendered votes list;

(vi)

the list of challenged votes with the statement or statement mentioned in sub-rule (2) of Rule 46;

(vii)

the covers referred to clause (ii) of sub-rule (4) of Rule 48; and

(viii)

any other paper directed by the Election Officer to be kept in a sealed cover.

(5)

Each packet shall be numbered and shall bear a note as to its contents, the name of the polling station and name and number of the ward where no vote has been recorded at any polling station, the Presiding Officer shall submit a nil report together with the statement in Form XVI referred to in sub-rule (6).

(6)

The packet shall be accompanied by a statement in a separate cover in Form XVI, made by the Presiding Officer showing the number of ballot papers in the ballot boxes, unused, spoilt and tendered ballot papers.

52.

(1)

The Presiding Officer shall then, as soon as may be, deliver the ballot boxes and all packets and papers used at the

polling station or cause them to be delivered to the Election Officer at such places as he may direct.

(2)

The Election Officer shall make adequate arrangements for the safe transport of any ballot boxes, packets and other papers referred to in this rule from polling stations and for their safe custody until the commencement of the counting of votes.

53.

(1)

The counting of votes shall commence on the day and at the place and hour appointed in that behalf. Votes shall be counted by, or under the supervision of the Election Officer. Each candidate, the election agent of each candidate and counting agent of each candidate shall have a right to be present at the time of counting. No other person shall be allowed to be present except such person as the Election Officer may appoint to assist him in counting the vote and no person shall be appointed to assist him in counting the votes who has been employed by or on behalf of any candidate for any purpose whatsoever connected with the election.

(2)

The Election Officer shall before he commences to count the votes read out the provisions of Section 18 of the Act to such persons as may be present and shall then count and check all the ballot boxes placed for the counting of votes and satisfy himself that all such ballot boxes as contain the ballot papers which are to be counted at such place have been received and accounted for.

(3)

The Election Officer shall allow the candidates and their election agents and counting agents present at the counting, reasonable opportunities to inspect the ballot boxes and their seals for satisfying themselves that they are in tact.

(4)

If any ballot box is found by the Election Officer to have been tampered or interfered with or destroyed or lost and if at any time before counting of votes is completed any ballot papers used at a polling station or at a place fixed for the poll are unlawfully taken out of the custody of the Election Officer or are accidentally or intentionally destroyed or lost or damaged or tampered with to such an extent that the result of the poll at the polling station or place cannot be ascertained, the Election Officer shall postpone the counting of votes and shall follow the procedure laid down in Rule 50. After the fresh poll under that rule has been completed he shall recommence the counting on the date at the time and place appointed by him in this behalf of which notice has been previously given to the candidates and their counting agents.

(5)

The ballot boxes relating to all polling stations and all envelopes pertaining thereto enclosed in covers which may have been received, shall be opened one after another according to the serial number of the polling station. The Election Officer shall take out the ballot papers therefrom, count them and record the total number of votes secured by the candidate concerned in a statement.

(6)

The Election Officer shall allow the candidates and their agents reasonable opportunities to inspect, without handling the ballot papers which in his opinion are liable to be rejected. He shall endorse the word "rejected" on every ballot paper which is rejected. If any candidate or agent present questions the correctness of the rejection, he shall also record on the ballot papers the grounds for the rejection.

(7)

The Election Officer shall, as far as practicable, proceed continuously with the counting of the votes and shall, during any necessary intervals in which the counting has to be suspended, place the ballot papers, packets and other documents relating to the election under his own seal and the seals of such candidates or agents as may desire to affix them and shall cause adequate precautions to be taken for their custody.

54.

(1)

A ballot shall be rejected if--

(a)

the mark is not made thereon; or

(b)

the mark is set opposite the name of more than one candidate or is so placed as to render it doubtful to which candidate it is intended to apply; or

(c)

the mark and some other figures are set opposite the name of same candidate; or

(d)

it bears any mark of writing by which the elector can be identified; or

(e)

is a spurious one; or

(f)

it is so damaged or that its identify as a genuine ballot paper, cannot be identified; or

(g)

bears the marks belonging to a ward different from that of the ballot box in which it is found:

Provided that a ballot paper shall not be rejected under clause (e) if the Election Officer is satisfied beyond reasonable doubt that the ballot paper was the one issued by the Presiding Officer of the Polling Station concerned.

(2)

A postal ballot paper which is not duly marked, or on which--

(a)

more than one mark is placed against any candidate's name; or

(b)

votes are given to more candidates than one candidate to be elected; or

(c)

a mark is placed in such a manner as to make it doubtful to which candidate it has been given; or

(d)

the signature of the voter is not duly attested, shall be invalid.

(3)

The decision of the Election Officer as to the validity of a ballot paper or a postal ballot paper shall be final, subject only to reversal on an election petition.

55.

(1)

After the Election Officer has completed the scrutiny and counting of votes, he shall prepare a return of the results of the polling in Form XVII and shall subject to the provisions of Rule 59 declare that the candidate who has secured the largest number of valid votes has been duly elected.

(2)

Any candidate or his agent shall, on application, be permitted to take a copy of an extract from the return in Form XVII.

56.

(1)

The Election Officer shall not open the sealed packets containing tendered ballot papers and the marked copy of the electoral roll. He shall verify the statement submitted by the Presiding Officer under sub-rule (6) of Rule 51 by comparing it with the number of accepted ballot papers, rejected ballot papers and unused ballot papers in his possession.

(2)

The Election Officer shall then make up into separate bundles in respect of each candidate--

(i)

such of the ballot papers as have been accepted as valid; and

(ii)

the remaining ballot papers which have been rejected as invalid he shall then make up both the bundles into one packet and seal the packet with his own seal. He shall also re close and reseal each of the other packets which were opened by him and record on each such packet a description of its contents.

57.

(1)

In case the Commissioner is not the Election Officer, the Election Officer shall after declaring the result, forward a copy of the return to the Commissioner of the Municipality/Nagar Panchayat concerned and shall handover to the Officer

authorised by the Election Authority the packets of ballot papers, whether counted, rejected or tendered and the counter-foils of the used ballot papers. These packets shall not be opened and their contents shall not be inspected or produced except under the orders of the election tribunal or other competent court.

(2)

The Officer so authorised shall retain the packets and the marked copies of the electoral roll for a year and shall them, unless otherwise directed by the orders of an election tribunal or other competent court, cause them to be destroyed.

58.

(1)

If any person has been elected as a Member of a ward or wards and also as Chairperson of the Municipality/Nagar Panchayat, he shall, by notice in writing signed by him, intimate to the Election Officer as to whether he chooses to be Chairperson or Member, to serve. Such intimation shall reach the Election Officer, within 15 days of the declaration of the last result of elections of the Municipality/Nagar Panchayat.

(2)

On receipt of the intimation, the Election Officer, shall declare the said person to have been elected to the office of the Chairperson or a Member chosen by him. In default of such intimation, the Election Officer shall declare him to have been elected to the office of the Chairperson. In that case, election proceedings shall be started afresh for filling up the vacancy or vacancies to the office of the Member for which such person has been elected.

59.

If there is an equality of votes between any two or more candidates, the Election Officer, shall, after notice to the candidates concerned, decide by drawing of lots which candidate or candidates shall be declared to have been elected. The Election Officer shall permit the contesting to have been elected. The Election Officer shall permit the contesting candidates if so desired, to sign on the chits before drawing lots.

60.

(1)

The name of the candidate duly elected shall be forwarded with no delay by the Election Officer to the Director of Printing and Stationery, Government Central Press, Hyderabad for publication in the Andhra Pradesh Gazette and shall also be published on the notice board of the Municipal Office.

(2)

The Election Officer shall intimate the name of the candidate elected to the office of the Chairperson of the Municipality/Nagar Panchayat together with his address to the Election Authority and the Collector concerned and in case of first, second and third grade municipalities to the Revenue Divisional Officer concerned also.

61.

The date on which a candidate is declared by the Election Officer under these rules to have been elected as Chairperson of a Municipal Council/Nagar Panchayat shall be the date of election of the Chairperson irrespective of the date of publication of the result in the Gazette.

62.

(1)

If any question arises as to the interpretation of these rules, otherwise than in connection with an enquiry held under the rules for the decision of disputes as to the validity of an election, the question shall be referred to the Government whose decision shall be final:

Provided that the *[State Election Commission] shall not entertain any petition relating to irregularities that arise from the time of calling for nominations and till the declaration of results. Such cases shall be decided by the Election Tribunal.

(2)

Pending the decision of the *[State Election Commission] on any such reference made to them or the issue of final orders on any enquiry which the *[State Election Commission] may institute upon receipt of information that an election is being or about to be held in contravention of the rules, it shall be lawful for the * [State Election Commission] to direct the stay of the election proceedings at any stage thereto prior to the declaration of the results. Any election held or continued in contravention of the orders of the *[State Election Commission] under this rule, shall be void and of no effect whatsoever.

(3)

Unless it is otherwise ordered by the *[State Election Commission], election proceedings stayed under this rule shall, on

cancellation of the stay order, proceed from the stage at which they were stayed on fresh dates, to be fixed.

(4)

If any difficulty arises as to the holding of any election under these rules, the *[State Election Commission], may, by order, do anything not inconsistent with these rules which appears to them necessary for the proper holding of the election.

63.

Notwithstanding anything contained in the foregoing rules, the *[State Election Commission] or the Election Authority may, for special reasons empower the Election Officer to fix dates and periods other than those specified by or under these rules, for all or any of the stages of the election proceedings connected therewith.

64.

Notwithstanding anything contained in these rules prescribing the period for various stages of election, if due to any unexpected cause any holiday is declared, the next working day shall be deemed to have been fixed for that purpose and the subsequent period will be reduced to that extent.

65.

Maximum election expenses.

(1)

No expenses, exceeding such amount, as may be specified by the State Election Commission, by notification, from time to time, shall be incurred or authorised to be incurred by a contesting candidate or his election agent, if any or on account of or in connection with the conduct and management of an election to the office of Chairperson.

(2)

Every candidate at an election shall, either by himself or by his election agent, keep a separate and correct day to day account of all expenditure in connection with the election, incurred or authorised to be incurred by him, or by his election agent between the date on which he has been nominated and the date of declaration of the result thereof, both dates inclusive.

(3)

It shall be competent for the State Election Commission to issue such instructions, as they may deem necessary, for the purposes of carrying out the provisions of sub-rules (1) and (2) thereof.

Appendix 1

Form - I

Nomination paper to be filled by the Candidate

[See Rule 6(1) and (4)]

Election to the Municipality.

Nomination of for election as Chairman of Municipal council of

1. Full Name of the Candidate :

2. Number of candidate in the electoral poll :

3. Father's or Husband's name :

4. Percentage :

5. Sex :

6. Occupation and address :

7. Community : OC/SC/ST/BC :

8. Full name of the proposer :

9. No. of the proposer in the electoral roll :

10. Signature of the proposer :

(to be filled by the candidate)

I declare that I am willing to stand for election as Chairperson of Municipality/Nagar Panchayat on the symbol of party/free symbol allotted by the Election Officer as per the directions of the State Election Commission.

I further declare that the code of conduct prescribed by the State Election Commission has been read by me/read over to be and I will abide by the conditions stipulated therein.

Date :

Signature of Candidate.

(to be filled by the Election Officer)

Serial No. of the Nomination paper:

This nomination paper was delivered to me at my office at (hours) on (date) by the candidate/proposer.

Election Officer or Authorised person.

Decision of Election Officer Accepting or Rejecting the Nomination Paper

I have examined this nomination paper in accordance with Rule 10 of the Andhra Pradesh Municipalities (Conduct of Election of Chairman under Section 23) Rules, 1986 and decided as follows :-

Date:

Election Officer.

Receipt for nomination paper and notice of scrutiny.

(To be handed over to the person presenting the nomination paper)

Serial number of nomination paper

The nomination paper of candidate for election as Chairman, Municipal Council was delivered to me at my office (hours) on nomination papers will be taken up for scrutiny at (hours) on (date)

Place :Date:

Election Officer or Authorised person.

Appendix 2

List of Nominations received onfor election as Chairman, Municipal council

Form - II

[See rule 9]

List of Nominations received on for election as Chairman, Municipal council

1. Serial Number :

2. Name of candidate :

3. Father's or Husband's Name :

4. Sex :

5. Occupation and address :

6. Name of the proposer :

Note :- The nomination paper will be taken up for scrutiny at A.M./P.M. on the day of at (Place)

Election Officer or other Authorised person

Appendix 2A

[Form II-A

[See Rule 10(4)]

List of validly nominated candidates

Election to the office of the Chairperson Municipality/Nagar panchayat

Sl.No.

Name of the Candidate

Name of Father/Mother/Husband

Address of Candidate

Party Affiliation

(1)

(2)

(3)

(4)

(5)

Place:Date:

Election Officer

Appendix 2B

Form II-B

[See Rule 12(i)]

Notice of withdrawal of candidature by the candidate

Election to the The Election Officer,

I (candidate validly nominated) at the above election do hereby give notice that I withdraw my candidature.

Signature of (Validly nominated candidate)

Place :Date :

This notice was delivered to me at my office at (hour) on (date) by (name), that

Date

Election Officer

Receipt for Notice of withdrawal (to be handed over to the person delivering the notice)

The notice of withdrawal of candidature by a (Validly nominated Candidate) at the election to the was delivered to me by the at my office at (hour) on (date).

Election Officer.

Appendix 2C

Form II-C

Notice of withdrawal of candidature

[See Rule 12(2)]

Election to the office of the Chairperson Municipality/Nagar Panchayat

Notice is hereby given that the following validly nominated candidate/candidates at the above election withdraw his candidature/their candidatures today.

Name of validly

Nominated candidate

Address of validly

Nominated candidate

Remarks

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.
- 7.
- 8.

Date 19 Election Officer.

Appendix 3

Form - III

[See Rule 6(7)]

Declaration in the case of Scheduled Caste/Scheduled Tribe/ Backward Class Candidate

I hereby declare that I am a member of the Scheduled Caste/Tribe/Backward Class which has been declared to be a Scheduled Caste/Scheduled Tribe/Backward Class in Andhra Pradesh in relation to District or area in the State.

Date :

Signature of Candidate

The above declaration is solemnly affirmed before me by who is personally known to me/who has been identified to my satisfaction by

Signature of an Officer of the Revenue

Department not below the rank of Deputy Tahsildar.Date :

Full Designation :

(Seal of the Office)

Appendix 4

Form - IV

[(See Rule 22 (1))]

[List of contesting candidates]

Names of the Municipality

Election of the Chairman Municipal Council

Sl.No.

Name of the Candidate

Sex of Candidate

Address of Candidate

Distinctive symbols assigned to candidate

(1)

(2)

(3)

(4)

(5)

Election Officer.

Appendix 5

Form - V

[See rule 16(1)]

Appointment of an Election Agent

To

The Election Officer for the election of Chairman Municipal Council

I a candidate for the election as Chairman, Municipal Council hereby appoint of as my election agent.

Dated this day of 198

Signature of Candidate.

I accept the above appointment

Signature of Election Agent.

Appendix 6

Form - VI

[See rule 17(1)]

Appointment of Polling Agent

Election to the Chairman, Municipal Council

To

The Election Officer for election as Chairman, Municipal Council

I, a candidate for election as Chairman, Municipal Council, Election Agent of Sri who is candidate at the present election, do hereby give notice I have appointed a polling agent to attend the polling station the polling booth No. at the polling station the place fixed for the poll.

Signature of the Candidate Election Agent.

I agree to act as such polling agent

Date

Signature of Polling Agent

Declaration of Polling Agent to be signed before the Presiding Officer

I hereby declare that I will not at this election do anything for bidden by Section 18 of the Andhra pradesh Municipalities Act, 1965 which I have read or which has been read out and explained to me.

Signature of the Polling Agent

Signed before me Presiding Officer

Date :

Appendix 7

Form - VII

[See Rule 18(1)]

Appointing of Counting Agent

Election to the Chairman, Municipal Council

To

The Election Officer for election as Chairman, Municipal Council

I, a candidate for election as Chairman, Municipal Council, Election Agent of Sri who is candidate at the present election, do hereby give notice I have appointed as a counting agent to at the counting of votes.

Signature of Candidate Election Agent.

I agree to act as such counting agent

Date

Signature of Counting Agent.

Declaration of Counting Agent to be signed Before the Election Officer

I, hereby declare that I will not at this election do anything forbidden by Section 18 of the Andhra Pradesh Municipalities Act, 1965 which I have read or which has been read out and explained to me.

Date

Signed before me.Election Officer

Date

Appendix 8

Form - VIII

[See Rule 24(1)]

Instructions

1. Not more than one vote may be given to a candidate
2. The ballot paper printed on coloured paper with their names and symbols indicate that they are intended to be used for voting in the election of Chairman, Municipal Council.
3. vote shall be recorded by placing a mark on the ballot paper opposite the name of the candidate for whom the votes wishes to vote (please also see further in the accompanying letter).
4. A voter shall obtain the attestation of his signature on the back of this form by a Magistrate to whom the voter is personally known or to whose satisfaction the voter is personally known or to whose satisfaction the voter has been identified; or

(a)

in case where the voter is a member of Armed Force of the Union or member of the Armed Police Force of the State serving outside the State, by the Commanding Officer of the unit in which the voter is employed and

(b)

in case where the voter is a person subject to preventive detention by the Superintendent of the jail or the commandant of the detention camp in which the voter is under detention.

5. The attesting Officer shall attest the signature of the vote but not his vote which should not be recorded in the presence of the attesting Officer.

(Form on the Back of Ballot Paper)

Serial Number of ballot paper

I hereby declare that I am the person whose name appears as voter No. on the electoral roll for ward and that I have not voted in this ward in any other manner and that at this ordinary/casual election I have not voted in any other ward.

Date :

Signature of the voter.

Signed in my presence by who is personally known to me (or who has been identified to my satisfaction).

Name

Address

Date :

Signature of Attesting Officer. Address :Date :

Appendix 9

Form - IX

[See Rule 24(2)(a)]

Form of Cover

Election of Chairman, Municipal Council

To

The Election Officer,

Address :

No. :

Appendix 10

Form - X

[See Rule 24(2)(c)]

Form of Letter of Intimation

Election to the Council of 198

Dear Sir/Madam,

1. The persons whose names are printed on the ballot paper sent herewith are the contesting candidates for election of Chairman, Municipal Council should you desire to vote at this election. I have to request that--

(a)

you will record your vote by placing a mark on the ballot paper opposite the name of the candidate for whom you wish to vote.

(b)

you shall not place mark opposite the name of more than one candidate.

(c)

you will sign the declaration on the back of the ballot paper in the presence of an attesting officer who shall attest only your signature but not your vote which you should not record in the presence of the attesting Officer.

(d)

you will then place the ballot paper in the envelope sent with this letter and close it up and enclose the envelope in the cover addressed to me and return the cover to me by prepaid post or by messenger so as to reach me before 5.00 P.M. on the day of 198.

2. covers returned by the post on which the postage has not been prepaid will not be received by me.

3. The officers who are empowered to attest ballot papers have been specified in the instructions sent along with the ballot paper.

4. Rule 27 of the Andhra Pradesh Municipalities (Direct Election of Chairman under Section 23) Rules, 1986 provides that if a voter is illiterate or unable due to physical incapacity to record his vote and sign the declaration on the back of the ballot paper he may make his declaration and record his vote by the hand of an Officer referred to in paragraph 3 above who is empowered to attest his signature and such voter may for this purpose deliver his ballot paper together with the envelope and the cover sent with this letter to such officer and request him to sign the declaration on the back of the ballot paper and to mark the ballot paper for such voter. The said rule further provides that such officer.

(a)

shall on being so requested by the voter certify on the back of the ballot paper the voter's incapacity and shall attest the fact that he was requested by the voter to sign the declaration on the back of the ballot paper and to mark the ballot paper for him and that he has put the mark on the ballot paper in accordance with the wishes of the voter and that the ballot paper was so signed and marked by him in the presence of the voter, and

(b)

shall thereupon place the marked ballot paper in the envelope mentioned above and close the same and enclose it in the cover referred to above and seal it and handover the sealed cover to the voter and the voter shall then send in forthwith to the Election Officer in accordance with the instructions contained in clause (d) of paragraph (1) of this letter.

5. Sub-rule (2) of Rule 54 of the aforesaid rules provides as follows:

A postal ballot paper which is not duly marked or on which, (a) more than one mark is placed against any candidate's name, or (b) votes are given to more candidate than one candidates to be elected, or (c) a mark is placed in such a manner as to make it doubtful to which candidate it has been given-or (d) the signature of the voter is not duly attested, shall be invalid.

6. Your number on the elected roll for ward is you should insert this number in the declaration the back of the ballot paper.

Yours faithfully, Election Officer.

Address :

.....

Date :

Appendix 11

Form - XI

[See Rule 36 (1)]

E.R. Part No.

S.No. of Elector

No.

Signature or thumb impression of the Elector

Sl.No.

Name of the Candidate

Symbol

(1)

(2)

(3)

Appendix 11A

Form - XI-A

[See Rule 36(1)]

Declaration by the companion of blind or infirm voter

Election of Chairman, Municipal council Ward No. Name of the polling Station/Booth.

I, son of aged years* resident of hereby declare that

1. I have not acted as companion of any other elector at any polling Station/Booth today the and

2. I will keep secret the vote recorded by me on behalf of

Signature of the Companion

Full name to be given, name and electoral number of elector to be given.

Appendix 11B

Form - XI-B

[See Rule 42 (2)]

List of blind and inform voters

Part No. & Sl.No. of Elector

Full name of the elector

Full name of the companion

Address of companion

Signature of left

thumb impression or companion

(1)

(2)

(3)

(4)

(5)

Signature of Presiding Officer.

Appendix 12

Form - XII

[See Rule 45(2)]

Tender Votes List

Direction election of Chairman to Municipality.

No. and name of the Polling Station

Part No. Sl.No. and name of the Elector

Address of elector

Sl.No. of tendered ballot paper

Sl. No. of the ballot paper issued to the
person who has already voted

Signature or thumb impression of per-son

tendering Vote

(1)

(2)

(3)

(4)

(5)

Date:

Signature of Presiding Officer.

Appendix 13

Form - XIII

[See Rule 46 (2)]

Declaration of Personation

I, (Name) hereby declare and undertake to prove that no person described
below has by applying for a ballot paper at this polling station, commit the offence of personation.

Description of the person.

Name of

Address :

Signature of Candidate or Agent. Signature of Candidate or Agent

(Before me)

Signature of Presiding Officer.

Appendix 14

Form - XIV

[See Rule 46(3)]

List of challenged votes

Direct Election of Chairman to Municipality.

Name and No. of Polling Station

Sl. No. of entry

Name of the elector

Part of roll

Elector's name in that part

Signature of thumb impression of person

challenged

(1)

(2)

(3)

(4)

(5)

Signature of Presiding Officer.

Appendix 15

Form - XV

[See Rule 48(1)]

Form of Authorisation to vote outside polling area Certified that Sri/Smt. entitled to vote at

..... has been employed in connection with the election of Chairman and is prevented from voting at the said station and that I have therefore authorised him to vote at

Station :

Date :

Signature of Election Officer

Appendix 16

Form - XVI

[See Rule 51 (6)]

Ballot paper Account to be sent by Presiding Officer in respect of Election of Chairman, Municipal Council

.....

Polling Station :

Sl.No.

Particulars

Number

Remarks

(1)

(2)

(3)

(4)

1.

Ballot papers received

2.

Ballot papers issued to voters

3.

Ballot papers in packets (Rule 48)

4.

Tendered Ballot papers (Rule 45)

5.

Number unused

6.

Number spoilt

7.

Ballot papers dealt with under Rule 48 included
under Col. (3)

8.

Ballot papers cancelled

Appendix 17

Form - XVII

[See Rule 55(1)]

Return showing the results of the election to the Office of Chairman, Municipal Council

Sl.No.

Name of the Candidate

No. of valid votes cast

1.

2.

3.

4.

Total No. of valid votes

.....

No. of rejected ballot papers in the ballot boxes.

1. Signature of counting person

2. Signature of Election Officer

Date:

Part - II Declaration to be made by the Election Officer

I do hereby declare that Sri/Smt. has been duly elected as Chairman, Municipal Council

Related AI tags, queries and research notes

Translation